

ANNEX 1 - JUSTIFICATION AND APPROVAL



DEPARTMENT OF THE NAVY
NAVAL SURFACE WARFARE CENTER
PANAMA CITY DIVISION
110 VERNON AVENUE
PANAMA CITY, FL 32407-7001

IN REPLY REFER TO:

J&A Number: 125012

JUSTIFICATION AND APPROVAL FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

JUSTIFICATION

1. Contracting Activity.

The Naval Sea Systems Command, Naval Surface Warfare Center, Panama City Division (NSWC PCD).

2. Description of Action Being Approved.

Award of a Cost-Plus Fixed Fee (CPFF) follow-on Requirements Indefinite Delivery, Indefinite Quantity (IDIQ) contract on a sole source basis to Georgia Tech Applied Research Corporation (GTARC), 926 Dalney St NW, Atlanta, GA 30318 - (CAGE Code 1FEZ4) a non-profit organization, in its capacity as a Department of Defense University Affiliated Research Center (UARC).

3. Description of Supplies/Services.

The Contractor shall continue to provide research, development (R&D), and engineering capabilities for Command, Control, Computing, Communications, Cybersecurity, Intelligence, Surveillance, Reconnaissance, and Targeting (C5ISRT), Integrated Technology, Automation, Uncrewed Autonomous Systems (UxS), Counter Uncrewed Autonomous Systems (C-UxS), Security, and Network Technology support in the following areas: (1) C5ISRT Research and Development; (2) Analysis of Alternatives Support and Toolsets; (3) C5ISRT, Security, UxS, and CUxS Test and Training System(s); (4) Development and Integration of C5ISRT, Security, and C-UxS Operations Capabilities; (5) Cyber/Electronic Warfare (EW) Convergence Analysis; and (6) UxS system and sensor research and development.

The proposed contract action will have a base period of performance of twelve months with four additional twelve-month options for a total period of performance of sixty months. The Government's minimum needs have been verified by the certifying technical and requirements personnel. This J&A does not authorize acquisition for other requirements.

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4. **Statutory Authority Permitting Other than Full and Open Competition.**

10 U.S.C. 3204(a)(1) FAR 6.302-1(a)(2)(iii) – *Only one responsible source and no other supplies or services will satisfy agency requirements.*

5. **Rationale Justifying Use of Cited Statutory Authority.**

In 2016, NSWC PCD awarded a five-year IDIQ number N61331-16-D-0003 for Command, Control, Communications, Computers, and Intelligence (C4I) and Cyberspace Research, Engineering, Science, and Technology Support to GTARC, a non-profit organization, in the following areas: (1) Basic and applied research, exploratory, and advanced development of Cyber Assurance and Cyber Operations Capabilities; (2) Cyber Command and Control (C2) and Information Operations (IO) Analytical, Engineering, Test and Training Support; (3) Advanced Malware Analysis; (4) Cyber Platform Integration; (5) Secure communications, communication systems, and information and cyber technologies Analysis of Alternatives Support and Toolsets; (6) Cyber/Electronic Warfare (EW) Convergence Analysis; (7) C4I Systems Test and Training Systems; and (8) Communication and Information Technology (IT) Research and Development. In 2020, NSWC PCD extended this contract through May 2026, pursuant the Federal Acquisition Regulation (FAR) 52.217-9, Defense Federal Acquisition Regulation (DFARS) 217.204(e)(i)(C) and Navy Marine Corps Acquisition Regulation Supplement (NMCARS) 5217.204(e)(i). This contract can no longer be extended, but the continuation need remains.

Under the current contract, GTARC provided technical and analytical support for the C5ISRT related to the applied research core competencies of research, development, and engineering work in command, control, communications, computers, and intelligence (C4I) and cyberspace technologies; state-of-the-art proof-of-concept capability assessment, design, development, testing, and fielding of C4I and cyber mission assurance technologies with a focus on creating synergy and synchronizing war-fighting effects to defend the information security environment; and to participate in future Department of Defense (DoD) technology initiatives. GTARC fulfilled these requirements and further specialized on the expeditionary mission suite. This proposed follow-on contract action will require GTARC's continuation and expansion of technical and analytical support for NSWC PCD related to its core competencies of research, development, and engineering work in C5ISRT Integrated Technology, Automation, C2-UxS (emergent technologies), Security, and Network technology research; developing research and engineering strategies for mitigation of risk in systems and technology programs; design and development of hardware and software tools, models and prototypes; performing technology and engineering analysis to include systems engineering and systems of systems engineering analysis supporting the design, development, interoperability, exploitability, and testing technologies with a focus on creating synergy and synchronizing war-fighting effects to defend the information security environment; and to participate in future Department of Defense (DoD) technology initiatives. This support to NSWC PCD is required to meet time sensitive operational needs in an ever-changing environment. GTARC's core competencies include a broad range of disciplines such as Offensive and Defensive Cyber Operations (OCO/DCO), Cyber Command and Control (C2) and Information Operations (IO), Communication and Information Technology (IT) Support, Future Architecture Studies; and system sustainability which are required by NSWC PCD to meet the changing requirements of fielded and developmental systems. GTARC has been instrumental in researching and addressing solutions that have increased the efficiency of essential engineering and technological capabilities.

The continuation of this work is essential to continue the applied research and scientific and

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technological investigations of this institution because of its technical expertise, facilities, and capacities to act as a neutral advisor or evaluator for the Government. GTARC has played a key role in the Technology Road Map in C5ISRT, mission assurance, and uncrewed system technologies with a focus on creating synergy and synchronizing war-fighting effect of Expeditionary Warfare systems that are mission essential to NSW PCD. GTARC serves as the technical experts for Program Executive Office (PEO) Digital, who leads the Navy and Marine Corp in enterprise services innovation, development, and delivery to Sailors and Marines. GTARC provides engineers and network architects familiar with both industry standards as well as the intricacies of the Navy and Marine Corp enterprise network architectures. Their in-depth knowledge was accumulated over decades of technical support provided to the Navy and Marine Corp and is critical with the transition of enterprise service to cloud architecture. To identify a company or institute with comparable knowledge and skills would take a considerable amount of time and effort. Additionally, it would take at least four to five years to transfer the decades of knowledge and experience accumulated by GTARC. GTARC is leveraged and integrated with PEO Digital, where they are helping to develop the future DoD Cloud and IT architecture which NSW PCD can leverage to stay at the forefront of C5ISRT system development ready to fully integrate into those future architectures. NSW PCD desires to maintain the engineering, research, and development capability of GTARC as a non-profit research institution. GTARC's experience and contacts as a nonprofit research institution allows for continuity of technology road mapping that benefits the NSW PCD mission and most importantly puts new technology in the hands of the war fighter.

There does not exist an additional organization, for profit or for non-profit, that can continue these highly specialized services at the minimum performance level required for this proposed acquisition or at a maturity level that can be replicated and expanded on the stated applications. Attempting to find a source to achieve this level of knowledge base and performance thereof, will require substantial duplication of costs. To transfer knowledge and performance to another source will cost the Government approximately [REDACTED]

[REDACTED]

[REDACTED]

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[REDACTED]

This cost and time will not be recovered through competition. These estimates are based on the approximated investment for GTARC to perform at the minimum requirements. This estimate was derived from historical data from the current contract N61331-16-D-0003, which included working knowledge to complete the planned SOW tasks forecasted over a five-year period. As such, it is advantageous to the Government to continue these applied research efforts on a sole source basis.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

Sources sought notice number N61331-25-SN-Q27 was published on 11 April 2025 through 25 April 2025 on the Government Point of Entry website, SAM.gov. In addition, the proposed contract action N61331-25-R-AM27 was synopsized from 5 May 2025 through 19 May 2025, per FAR 5.203(a). To date, GTARC was the only entity responding to these announcements and found fully capable of meeting the Government's minimum requirement needs. [REDACTED]

[REDACTED] No additional market research was conducted because it is not practical, for the reasons discussed in paragraph 5 above, for any company other than GTARC to provide the required equipment and refurbishment support.

7. Determination of Fair and Reasonable Costs.

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Competition.

For the reasons set forth in Paragraph 5, NSWC PCD has no plans at this time to compete for future contracts for the types of supplies/services covered by this document. If another potential source emerges NSWC PCD will assess whether competition for future requirements is feasible. As this is a follow-on for supplies and services previously awarded on a non-competitive basis, in accordance with DFARS PGI 206.304(a)(S-70)(i), prior J&A was provided to the approval authority for review. Approval of this J&A signifies the approval authority has made the determination required by DFARS PGI 206.304(a)(S-70)(ii).

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